

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Donaghy	Team: Squad #2	CCRB Case #: 201900473	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 01/14/2019 9:49 PM	Location of Incident: § 87(2)(b)	Precinct: 110	18 Mo. SOL 7/14/2020	EO SOL 2/28/2021	
Date/Time CV Reported Wed, 01/16/2019 12:38 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/16/2019 12:38 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Peter Leonello	30054	965264	110 PCT
2. POM William Graham	22859	953926	110 PCT
3. POM Matthew Caulfield	02134	956507	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Wayne Yu	08593	939728	110 PCT
2. POM Paul Illowsky	06402	935042	110 PCT
3. POM James Gasiorek	03349	934909	110 PCT
4. SGT Ryan Hallahan	492	943344	110 PCT
5. POM Michael Krukowski	21663	963103	110 PCT
6. POM Christophe Bourgade	08738	962953	110 PCT
7. POM Joseph Xerri	09326	939721	110 PCT
8. SGT Justin Freese	02148	941778	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Matthew Caulfield	Abuse: Police Officer Matthew Caulfield entered § 87(2)(b) § 87(2)(b), in Queens.	§ 87(2)(b)
B.POM Peter Leonello	Abuse: Police Officer Peter Leonello entered § 87(2)(b) § 87(2)(b), in Queens.	§ 87(2)(b)
C.POM William Graham	Abuse: Police Officer William Graham entered § 87(2)(b) § 87(2)(b) in Queens.	§ 87(2)(b)
D.POM Matthew Caulfield	Abuse: Police Officer Matthew Caulfield searched § 87(2)(b) § 87(2)(b) in Queens.	§ 87(2)(b)

Case Summary

On January 16, 2019, § 87(2)(b) reported the following complaint via a telephone call with the CCRB. § 87(2)(b) filed a complaint about the same incident with IAB via 311, which was received by the CCRB on January 22, 2019 (Board Review 24).

On January 14, 2019, at approximately 9:49 p.m., § 87(2)(b) was in his apartment at § 87(2)(b), in Queens. Police Officer Matthew Caulfield, Police Officer William Graham, and Police Officer Peter Leonello of the 110th Precinct came to § 87(2)(b)'s door and knocked on it. § 87(2)(b) answered the knocking and partially opened the door to his apartment. After a brief conversation across the threshold of § 87(2)(b)'s apartment, Police Officer Caulfield pushed open the door to § 87(2)(b)'s apartment. Then Police Officer Caulfield, Police Officer Graham, and Police Officer Leonello allegedly entered § 87(2)(b)'s apartment (**Allegation A: Abuse of Authority - Entry of Premises, § 87(2)(g)**) (**Allegation B: Abuse of Authority - Entry of Premises, § 87(2)(g)**) (**Allegation C: Abuse of Authority - Entry of Premises, § 87(2)(g)**) Police Officer Caulfield then allegedly searched § 87(2)(b)'s apartment (**Allegation D: Abuse of Authority - Search of Premises, § 87(2)(g)**). Afterwards, officers left § 87(2)(b)'s apartment without arresting him or giving him a summons.

The investigation obtained footage from body-worn cameras (BWC) of the following officers; Police Officer Matthew Caulfield in IA # 73 (Board Review 01), Police Officer William Graham in IA # 74 (Board Review 02), Police Officer Peter Leonello in IA # 75 (Board Review 03), Police Officer Paul Illowsky in IA # 53 (Board Review 04), Police Officer James Gasiorek in IA # 54 (Board Review 05), Police Officer Christopher Martinezdealmeida in IA # 55 (Board Review 06), Police Officer Ryan Hallaran in IA # 56 (Board Review 07), Police Officer Robert Casaburi in IA # 80 (Board Review 08), Police Officer Michael Krukowski in IA # 57 (Board Review 09), and Police Officer Christopher Bourgade in IA # 58 (Board Review 10). The BWC footage of Police Officer Caulfield, Police Officer Graham, and Police Officer Leonello, the three BWC videos capturing the allegations in this case, are summarized in IA # 95 (Board Review 11).

Findings and Recommendations

Allegation (A) Abuse of Authority – Police Officer Matthew Caulfield entered § 87(2)(b)

§ 87(2)(b), in Queens:

Allegation (B) Abuse of Authority – Police Officer William Graham entered § 87(2)(b)

§ 87(2)(b), in Queens:

Allegation (C) Abuse of Authority – Police Officer Peter Leonello entered § 87(2)(b)

§ 87(2)(b), in Queens:

Allegation (D) Abuse of Authority – Police Officer Matthew Caulfield searched § 87(2)(b)

§ 87(2)(b), in Queens:

On January 22, 2019, § 87(2)(b) was interviewed at the CCRB. On March 14, 2019, § 87(2)(b) and § 87(2)(b) two neighbors of § 87(2)(b) whose call to the police precipitated this incident, provided telephone statements to the CCRB (Board Review 12). On March 15, 2019, Sergeant Justin Freese was interviewed at the CCRB. On March 27, 2019, Police Officer Leonello was interviewed at the CCRB. On April 15, 2019, Police Officer Caulfield and Police Officer Graham were interviewed at the CCRB.

It is undisputed that Police Officer Caulfield, Police Officer Leonello, and Police Officer Graham responded to a 911 call at § 87(2)(b) in Queens. It is further undisputed that, once on scene, Police Officer Caulfield, Police Officer Leonello, and Police Officer Graham entered § 87(2)(b)'s apartment, and

Police Officer Caulfield searched the premises. § 87(2)(b) was not arrested, given a summons, or removed from the scene in an ambulance.

During his CCRB interview § 87(2)(b) stated that he was not aware of the presence of police officers until he heard a knocking on his door. § 87(2)(b) opened his door halfway and observed multiple officers, who he recognized from previous police responses to his apartment, standing in the hallway outside his door. § 87(2)(b) asked the officers what was going on and an officer, who the investigation has identified as Police Officer Caulfield, replied by asking § 87(2)(b) what he had in his hands. § 87(2)(b) put his hands up to show that they were empty, and as he did so Police Officer Caulfield stated, “Get out of the way,” and shoved his way into § 87(2)(b)’s apartment. Additional officers, who the investigation has identified as Police Officer Graham and Police Officer Leonello, entered immediately behind Police Officer Caulfield. § 87(2)(b) did not give consent for officers to enter his apartment. Police Officer Caulfield then entered and searched § 87(2)(b)’s bedroom, storage room, bathroom, and kitchen. Shortly after completing the search all the police officers left § 87(2)(b)’s apartment.

§ 87(2)(b) a resident of the apartment below § 87(2)(b) stated that, though she did not recall this specific incident, both she and § 87(2)(b) had called the police to § 87(2)(b) in Queens on many occasions prior to this incident. These calls were centered on disputes between § 87(2)(b) on the second floor and his neighbors, including § 87(2)(b) who lived on the § 87(2)(b) floor directly below him.

During their CCRB interviews Police Officer Caulfield, Police Officer Graham, and Police Officer Leonello all stated that they had multiple previous encounters with § 87(2)(b) within the months leading to January 14, 2019, and that officers from the 110th Precinct have responded to § 87(2)(b) in Queens on numerous occasions. Most of those calls were settled as landlord-tenant disputes, and Police Officer Caulfield, Police Officer Graham, and Police Officer Leonello did not recall having ever having removed § 87(2)(b) to the hospital as an emotionally disturbed person (EDP).

The investigation determined that it was a 911 call that summoned officers to the scene for this incident, a recording of which is stored in IA # 84 (Board Review 25), documented in an EVENT located in IA # 13 (Board Review 29), and summarized in IA # 93 (Board Review 14). A female caller who identifies herself as the daughter of § 87(2)(b) landlord reports that a “mentally ill” tenant, § 87(2)(b) is pouring water into her parent’s living space and pounding 200-pound weights against the floor. While the 911 caller states that the § 87(2)(b) is a “violent person,” she clarifies that he is not doing anything to harm any person, is not violent as of the time of the call, and is not physically unwell as far as the caller is aware.

A review of the police radio communication during this incident, which is stored in IA # 86 (Board Review 13) and is summarized in IA # 93 (Board Review 14) showed the information reported to the officers who responding to the 911 call. At the 3:59 timestamp into the recording the dispatcher states, “At this time in the one ten receiving a fifty-four violent EDP, fifty-four violent EDP,” and then at 5:00 timestamp the dispatcher states, “No weapons, no injuries, states violent at the time. [...] There is going to be a male Hispanic named § 87(2)(b) He’s § 87(2)(b) years old, no clothing description given. States he’s violent at this time.” The EVENT notes that at 9:59 p.m. the officers finalized the job and reported that there was no EDP at the location and that the incident was just a landlord/tenant dispute.

During his CCRB interview Police Officer Caulfield stated that when he arrived on the scene with Police Officer Leonello and Police Officer Caulfield, he spoke to the 911 callers, who the investigation has identified as § 87(2)(b) and § 87(2)(b)’s other downstairs neighbors. Police Officer Caulfield was already familiar with these neighbors from the previously mentioned disputes between them and § 87(2)(b)

Though the downstairs neighbors alleged that § 87(2)(b) was making a banging noise and dumping water into their apartment, Police Officer Caulfield did not observe either of these.

When Police Officer Caulfield went upstairs and knocked on § 87(2)(b)'s door, § 87(2)(b) appeared to be calm. Police Officer Caulfield could not see § 87(2)(b)'s hands and so asked § 87(2)(b) to show both of his hands, which § 87(2)(b) immediately did so. Police Officer Caulfield then entered § 87(2)(b)'s apartment without asking § 87(2)(b) for permission. When asked why he had entered § 87(2)(b)'s apartment, Police Officer Caulfield stated that since it was a call for an EDP he had to enter the apartment to see if there was anyone that needed medical attention or was a danger to themselves, and that there was no other reason to enter § 87(2)(b)'s apartment.

Once inside, Police Officer Caulfield searched § 87(2)(b)'s bedroom, a dark room next to § 87(2)(b)'s bedroom that required Police Officer Caulfield to use his flashlight, and § 87(2)(b)'s bathroom. Police Officer Caulfield was the only officer to search § 87(2)(b)'s apartment. Police Officer Caulfield determined § 87(2)(b) was not an EDP based on § 87(2)(b)'s demeanor and the fact that there was no one inside of § 87(2)(b)'s apartment that required medical attention.

During his CCRB interview Police Officer Graham stated that when he, Police Officer Caulfield, and Police Officer Leonello arrived on scene they spoke to § 87(2)(b) and § 87(2)(b)'s other downstairs neighbors. Those individuals stated to officers that they were calling to report that § 87(2)(b) was purposefully pouring water into their apartment through their ceiling, but Police Officer Graham stated that they did not provide any additional information and further that he had not seen any water leaking into their apartment. When he went upstairs, Police Officer Graham observed that § 87(2)(b) was behaving calmly, but determined that he still needed to enter § 87(2)(b)'s apartment to ensure that no one needed medical assistance and there was no further threat. Police Officer Graham entered § 87(2)(b)'s apartment, but stated that Police Officer Caulfield was the only officer to search § 87(2)(b)'s apartment.

During his CCRB interview Police Officer Leonello stated that when he had spoken to § 87(2)(b) and § 87(2)(b)'s other downstairs neighbors, they had stated that § 87(2)(b) was throwing weights on the floor and being violent, loud, and aggressive with them. However, Police Officer Leonello observed that there was only insignificant damage to the ceiling. Upon knocking on § 87(2)(b)'s door and identifying himself as an officer, § 87(2)(b) opened the door for Police Officer Leonello. § 87(2)(b) was calm and had a normal appearance. Police Officer Leonello asked if he could enter § 87(2)(b)'s apartment, and § 87(2)(b) stated, "Yeah, sure." Police Officer Leonello stated that he entered § 87(2)(b)'s apartment to ensure no one else was inside the apartment with § 87(2)(b) that the scene was okay for § 87(2)(b)'s safety, and for officer safety. Police Officer Leonello stated that he had no reason to think there was anyone in the apartment with § 87(2)(b) and that the only reason he had to fear for his safety was because of how the police dispatcher had reported the information.

A review of the BWC footage of this incident, especially the footage recorded by Police Officer Caulfield in IA # 73 (Board Review 01), recorded by Police Officer William Graham in IA # 74 (Board Review 02), and recorded by Police Officer Peter Leonello in IA # 75 (Board Review 03), all of which are summarized in IA # 95 (Board Review 11), show that officers were informed by § 87(2)(b) and § 87(2)(b)'s other downstairs neighbors that they were not calling about an emergency situation, and further show that officers entered § 87(2)(b)'s apartment without his consent.

In a subclip of Police Officer Graham's BWC footage beginning at timestamp 0:33, located in IA # 100 (Board Review 15), we see the full conversation between the 911 callers and officers. Police Officer Graham enters the first-floor apartment before the other officers, and asks § 87(2)(b) and § 87(2)(b)'s other

downstairs neighbors, “What is going on?” An unidentified female states, “The same thing,” and then points to a missing ceiling tile. Police Officer Graham asks, “He did that from upstairs?” The same unidentified female states, “That is upstairs,” and an unidentified male states, “And water too.” Police Officer Graham asks, “So you called on him?” and Police Officer Leonello informs the individuals in that apartment that Police Officers have their BWC on. Police Officer Graham, Police Officer Leonello, and Police Officer Caulfield then exit the apartment. There is no mention of § 87(2)(b) being violent, anyone being upstairs with § 87(2)(b) or any medical emergency.

In a subclip of Police Officer Caulfield’s BWC footage beginning at timestamp 1:20, located in IA # 101 (Board Review 16), we see how officers entered § 87(2)(b)’s apartment. As Police Officer Graham, Police Officer Leonello, and Police Officer Caulfield arrive outside of § 87(2)(b)’s door, Police Officer Caulfield states, “This one right here.” Police Officer Leonello, holding a riot shield, is standing closest to the door, and Police Officer Caulfield is standing directly behind him. Police Officer Leonello knocks on the door. After receiving no response, Police Officer Leonello knocks on the door a second time. At § 87(2)(b), § 87(2)(b) partially opens the door to his apartment and states “Yes?” Police Officer Leonello states “Come, open your door sir,” and puts his hand out to towards the door. Police Officer Caulfield states, “What’s your name, sir? Sir, what’s your name?” while walking towards the door. § 87(2)(b) replies, § 87(2)(b) Police Officer Caulfield, who by this point is standing immediately to the right of Police Officer Leonello, within arm’s length of the door, states “Okay, can you come outside?” § 87(2)(b) replies “Oh, no no. I’m going to stay in my apartment. I’m not going no place.”

Police Officer Caulfield states, “Okay, so what’s going on?” § 87(2)(b) replies, “Nothing’s going on.” Police Officer Caulfield states, “Can I see your hand?” § 87(2)(b) appears to raise his right hand, showing that nothing is visible in it. Police Officer Caulfield, after the hand is raised, states, “Okay,” and § 87(2)(b) states, “What happened?” Police Officer Caulfield then states, “Y’know,” and moves forward towards the door, pushes it open, and enters § 87(2)(b)’s apartment. As he does so § 87(2)(b) states, “No, no no! Nothing’s going on, I’m just in my apartment!” Police Officer Caulfield, now standing in the entrance to § 87(2)(b)’s apartment states “Okay, so what’s going on?” § 87(2)(b) replies, “There’s nothing going on! What’s going on? I’m in my apartment. What’s going on?”

Police Officer Caulfield then proceeds to walk through all the accessible spaces in the apartment; first through an open door into what appears to be a bedroom, and then into a darkly lit room accessible through the bedroom. Police Officer Caulfield turns around and exits the bedroom, and then approaches a closed door that § 87(2)(b) is standing next. Police Officer Caulfield asks if anyone is in that room, and § 87(2)(b) replies, “Nobody, nobody,” and opens the closed door. Police Officer Caulfield steps through the door into what appears to be a bathroom and briefly looks around without appearing to touch anything.

§ 87(2)(g)

To analyze emergency circumstances, the courts utilize a three-part test: “(1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property; (2) The search must not be primarily motivated by intent to arrest and seize evidence; (3) There must be some reasonable basis, approximating probable cause, to associate the emergency

with the area or place to be searched.” People v. Rodriguez, 77 A.D.3d 280 (2010) (Board Review 27). People v. Rodriguez notes that, in Brigham City v. Stuart (Board Review 28), the United States Supreme Court ruled that the second prong, regarding the officers’ subjective motivations, was “irrelevant” when assessing emergency entries.

The courts have made rulings in favor of emergency doctrine entries into the residences of allegedly emotionally disturbed persons. In People v. Salazar 290 A.D.2d 256 (2002) (Board Review 18), officers entered a defendant’s residence after the defendant had engaged in violent conduct, made threats, and exhibited what officers considered to be a disturbed mental condition. This entry was based not only on witness reports, however, but also the demeanor of the defendant as observed by the officers. In People v. Stergiou 279 A.D.2d 387 (2001) (Board Review 19), officers prepared to make justified emergency entry based upon information from the defendant’s psychiatrist that the defendant intended to kill himself and had four bottles of gasoline in his apartment. Before officers could enter on this basis, the civilian lit a flare and set the location on fire.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 22).
- Police Officer Matthew Caulfield has been a member of service for 5 years and has been a subject in one CCRB complaint with one allegation, which was not substantiated. § 87(2)(g)
- Police Officer William Graham has been a member of service for 6 years. This is the first complaint in which he has been a subject.
- Police Officer Peter Leonello has been a member of service for 1 year. This is the first complaint in which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of May 30, 2019, as per the New York City Comptroller no Notice of Claim related to this incident has been filed.

Squad No.: 2

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date